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Catholic votes.”⁷ The amendment had its intended galvanizing effect. “Its popularity was so great” that “even congressional Democrats,” who depended on Catholic votes, “were expected to support it,” and the congressional floor debates were rife with anti-Catholic sentiment, including “a tirade against Pope Pius IX.”⁸

Montana’s no-aid provision was the result of this same prejudice. When Congress allowed Montana into the Union in 1889, it still included prominent supporters of the failed Blaine Amendment. See Sen. Daines Brief 10–13. The Act enabling Montana to become a State required “[t]hat provision shall be made for the establishment and maintenance of systems of public schools . . . free from sectarian control.” Act of Feb. 22, 1889, § 4, 25 Stat. 677; see also Becket Fund Brief 17–18 (quoting one Senator’s description of the Act as “‘completing the unfinished work of the failed Blaine Amendment’”). Montana thereafter adopted its constitutional rule against public funding for any school “controlled” by a “sect.” Mont. Const., Art. XI, § 8 (1889). There appears to have been no doubt which schools that meant. As petitioners show, Montana’s religious schools—and its private schools in general—were predominantly Catholic, see Brief for Petitioners 42, and n. 41, and anti-Catholicism was alive in Montana too. See, *e. g.*, Sen. Daines Brief 1–3 (describing a riot over an anti-Catholic sign hung over a Butte saloon on Independence Day, 1894).

Respondents argue that Montana’s no-aid provision merely reflects a state interest in “preserv[ing] funding for public schools,” Brief for Respondents 7, known as common schools during the Blaine era. Yet just as one cannot separate the Blaine Amendment from its context, “[o]ne cannot

⁷ Green, *The Blaine Amendment Reconsidered*, 36 *Am. J. Legal Hist.* 38, 54 (1992) (quoting article; internal quotation marks omitted).

⁸ DeForrest, *An Overview and Evaluation of State Blaine Amendments: Origins, Scope, and First Amendment Concerns*, 26 *Harv. J. L. & Pub. Pol’y* 551, 566, 570 (2003); see also, *e. g.*, Becket Fund Brief 5–11.

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separate the founding of the American common school and the strong nativist movement.”⁹

Spearheaded by Horace Mann, Secretary of the Massachusetts Board of Education from 1837 to 1848, the common-school movement did not aim to establish a system that was scrupulously neutral on matters of religion. (In a country like ours, that would have been exceedingly difficult, if not impossible.) Instead the aim was to establish a system that would inculcate a form of “least-common-denominator Protestantism.”¹⁰ This was accomplished with daily reading from the King James Bible, a curriculum that, Mann said, let the book “speak for itself.” 4 *Life and Works of Horace Mann* 312 (1891) (Mann’s 12th annual report on the Massachusetts schools; emphasis deleted). Yet it was an affront to many Christians and especially Catholics, not to mention non-Christians.¹¹

Mann’s goal was to “Americanize” the incoming Catholic immigrants. In fact, he and other proponents of the common-school movement used language and made insinuations that today would be considered far more inflammatory. In his 10th annual report on the Massachusetts schools, Mann described the State as “parental,” assuming the responsibility of weaning children “[f]or the support of the poor, nine-tenths of whose cost originate with foreigners or come from one prolific vice,” meaning alcohol. *Id.*, at 132, 134 (emphasis deleted). In other writing, he described the common-school movement as “laboring to elevate mankind into the upper and purer re-

⁹ Viteritti, *Blaine’s Wake: School Choice, the First Amendment, and State Constitutional Law*, 21 *Harv. J. L. & Pub. Pol’y* 657, 667 (1998) (Viteritti, *Blaine’s Wake*).

¹⁰ Jeffries & Ryan, *A Political History of the Establishment Clause*, 100 *Mich. L. Rev.* 279, 298 (2001) (Jeffries & Ryan); see also, *e. g.*, CER Brief 23–26.

¹¹ See Glenn 166; Lain, *God, Civic Virtue, and the American Way: Reconstructing Engel*, 67 *Stan. L. Rev.* 479, 487–488 (2015).

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gions of civilization, Christianity, and the worship of the true God; all those who are obstructing the progress of this cause are impelling the race backwards into barbarism and idolatry.’” Glenn 171–172 (quoting an 1846 article by Mann in the *Common School Journal*).

These “obstructors” were Catholic and other religious groups and families who objected to the common schools’ religious programming, which, as just seen, was not neutral on matters of religion. Objections met violent response. In Massachusetts and elsewhere, Catholic students were beaten and expelled for refusing to read from the King James Bible.¹² In New York, a mob destroyed the residence of Bishop John Hughes, who had argued that, if the State was going to fund religious public education, it should also support church schools. The militia needed to be called to protect St. Patrick’s Cathedral.¹³ Most notorious were the Philadelphia Bible Riots. In 1844, a rumor circulated in the city’s nativist newspapers that a school director, who was Catholic, had ordered that Bible reading be stopped.¹⁴ Months of scaremongering broke out into riots that left two of the city’s Catholic churches burned and several people dead. Only by calling out the militia and positioning a cannon in front of a Catholic church—which itself had been taking cannon fire—were the riots ultimately quelled.¹⁵

Catholic and Jewish schools sprang up because the common schools were not neutral on matters of religion. “Faced with public schools that were culturally Protestant and with curriculum[s] and textbooks that were, consequently, rife with material that Catholics and Jews found offensive, many

¹² See Jeffries & Ryan 300.

¹³ See Viteritti, *Choosing Equality: School Choice, the Constitution, and Civil Society* 151 (1999).

¹⁴ See Sekulow & Tedesco, *The Story Behind Vidal v. Girard’s Executors: Joseph Story, the Philadelphia Bible Riots, and Religious Liberty*, 32 *Pepperdine L. Rev.* 605, 630 (2005).

¹⁵ See *id.*, at 633–638.

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Catholics and Orthodox Jews created separate schools,” and those “who could afford to do so sent their children to” those schools.¹⁶

But schools require significant funding, and when religious organizations requested state assistance, Mann and others labeled them “sectarian”—that is, people who had separated from the prevailing orthodoxy. See, *e. g.*, Jeffries & Ryan 298, 301. The Blaine movement quickly followed. In 1854, the Know Nothing party, in many ways a forerunner of the Ku Klux Klan,¹⁷ took control of the legislature in Mann’s Commonwealth of Massachusetts and championed one of the first constitutional bans on aid to “sectarian” schools (along with attempting to limit the franchise to native-born people). See Viteritti, *Blaine’s Wake* 669–670.

Respondents and one dissent argue that Montana’s no-aid provision was cleansed of its bigoted past because it was re-adopted for non-bigoted reasons in Montana’s 1972 constitutional convention. See *post*, at 541–542, n. 2 (opinion of SOTOMAYOR, J.); see also Brief for Respondents 18; Tr. of Oral Arg. 22–23. They emphasize that the convention included Catholics, just as the constitutional convention that re-adopted Louisiana’s purportedly racist non-unanimous jury provision included black delegates. As noted, a virtually identical argument was rejected in *Ramos*, even though “‘no mention was made of race’” during the Louisiana convention debates. 590 U.S., at 142 (ALITO, J., dissenting) (quoting *State v. Hankton*, 2012–0375, p. 19 (La. App. 4 Cir. 8/2/13), 122 So. 3d 1028, 1038). Under *Ramos*, it emphatically does not matter whether Montana readopted the no-aid provision for benign reasons. The provision’s “uncomfortable past”

¹⁶ Brief for Union of Orthodox Jewish Congregations of America as *Amicus Curiae* in *Trinity Lutheran Church of Columbia, Inc. v. Comer*, O. T. 2016, No. 15–577, p. 15 (internal quotation marks, citation, and brackets omitted).

¹⁷ See generally Myers, Know Nothing and Ku Klux Klan, 219 North Am. Rev. 1 (Jan. 1924).

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must still be “[e]xamined.” 590 U. S., at 99, n. 44 (opinion of the Court). And here, it is not so clear that the animus was scrubbed.

Delegates at Montana’s constitutional convention in 1972 acknowledged that the no-aid provision was “a badge of bigotry,” with one Catholic delegate recalling “being let out of school in the fourth grade to erase three ‘Ks’ on the front doors of the Catholic church in Billings.”¹⁸ Nevertheless the convention proposed, and the State adopted, a provision with the *same* material language, prohibiting public aid “for any *sectarian* purpose or to aid any . . . school . . . controlled in whole or in part by any church, *sect*, or denomination.” Mont. Const., Art. X, § 6(1) (1972) (emphasis added). A leading definition of “sect” at the time, as during the Blaine era, was “a dissenting religious body; *esp: one that is heretical in the eyes of other members within the same communion.*” Webster’s Third New International Dictionary 2052 (1971) (some emphasis added).

Given the history above, the terms “sect” and “sectarian” are disquieting remnants. And once again, there appears to have been little doubt which schools this provision would predominantly affect. In 1970, according to the National Center for Educational Statistics, Montana had 61 religiously affiliated schools. Forty-five were Roman Catholic.¹⁹ Not only did the convention delegates acknowledge the no-aid provision’s original anti-Catholic intent, but the Montana Su-

¹⁸6 Montana Constitutional Convention 1971–1972, Proceedings and Transcript, p. 2012 (Mont. Legislature and Legislative Council) (Convention Tr.) (statement of Delegate Schiltz); see also, *e. g.*, *id.*, at 2010 (statement of Delegate Harbaugh) (recognizing the provision as a Blaine Amendment, which “espoused the purpose of the Know-nothing Party”); *id.*, at 2011 (statement of Delegate Toole) (recognizing the provision as a Blaine Amendment); *id.*, at 2013 (statement of Chairman Graybill) (same); *id.*, at 2027 (statement of Delegate Campbell) (same); *id.*, at 2030 (statement of Delegate Champoux) (same).

¹⁹See Nat. Center for Educational Statistics, Statistics of Nonpublic Elementary and Secondary Schools 1970–71, pp. 32–33 (1973) (Table 1).

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preme Court had only ever applied the provision once—to a Catholic school, and one that had “carrie[d] a sizeable portion of the total educational load” in Anaconda, Montana. *State ex rel. Chambers v. School Dist. No. 10 of Deer Lodge Cty.*, 155 Mont. 422, 430, 472 P. 2d 1013, 1017 (1970) (*per curiam*). The Montana Catholic Conference also voiced concerns about access to school funds, and a convention delegate proposed removing the no-aid provision’s restriction on “indirect” aid. See Convention Tr. 2010, 2027. That amendment was rejected.

Thus, the no-aid provision’s terms keep it “[t]ethered” to its original “bias,” and it is not clear at all that the State “actually confront[ed]” the provision’s “tawdry past in reenacting it.” *Ramos*, 590 U. S., at 507 (SOTOMAYOR, J., concurring in part). After all, whereas the no-aid provision had originally been foisted on Montana, the State readopted it voluntarily—“sectarian” references included. Whether or not the State did so for any reason that could be called legitimate, the convention delegates recognized that the provision would “continue to mean and do whatever it does now,” Convention Tr. 2014 (statement of Delegate Loendorf), and the discrimination in this case shows that the provision continues to have its originally intended effect. And even if Montana had done more to address its no-aid provision’s past, that would of course do nothing to resolve the bias inherent in the Blaine Amendments among the 17 States, by respondents’ count, that have not readopted or amended them since around the turn of the 20th century.²⁰

²⁰ Ala. Const., Art. XIV, § 263 (1901); Ariz. Const., Art. II, § 12, Art. IX, § 10 (1912); Colo. Const., Art. V, § 34, Art. IX, § 7 (1876); Del. Const., Art. X, § 3 (1897); Ind. Const., Art. I, § 6 (1851); Ky. Const. § 189 (1891); Miss. Const., Art. 8, § 208 (1890); Nev. Const., Art. XI, § 10 (1880); N. H. Const., Pt. II, Art. 83 (1877); N. M. Const., Art. XII, § 3 (1911); N. D. Const., Art. VIII, § 152 (1889); Ohio Const., Art. VI, § 2 (1851); Okla. Const., Art. II, § 5 (1907); Ore. Const., Art. I, § 5 (1857); S. D. Const., Art. VIII, § 16 (1889); Wis. Const., Art. I, § 18, Art. X, § 3 (1848); Wyo. Const., Art. I, § 19, Art. VII, § 8 (1889).

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Today's public schools are quite different from those envisioned by Horace Mann, but many parents of many different faiths still believe that their local schools inculcate a worldview that is antithetical to what they teach at home. Many have turned to religious schools, at considerable expense, or have undertaken the burden of homeschooling. The tax-credit program adopted by the Montana Legislature but overturned by the Montana Supreme Court provided necessary aid for parents who pay taxes to support the public schools but who disagree with the teaching there. The program helped parents of modest means do what more affluent parents can do: send their children to a school of their choice. The argument that the decision below treats everyone the same is reminiscent of Anatole France's sardonic remark that "[t]he law, in its majestic equality, forbids the rich as well as the poor to sleep under bridges, to beg in the streets, and to steal bread.'" J. Cournos, *A Modern Plutarch* 35 (1928).

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The people of Montana, acting through their legislature, adopted a school choice program. It provided a modest tax credit to individuals and businesses who donated to nonprofit scholarship organizations. As the program began to take root, Montana had just one scholarship organization. It granted scholarships to families who were struggling financially or had children with disabilities. Recipients were free to use the scholarships at the schools of their choice. Some families chose secular schools, others religious ones.

Kendra Espinoza, the lead petitioner in this case, is a single mother who works three jobs. She planned to use scholarships to help keep her daughters at an accredited religious school. That is, until the Montana Supreme Court struck down the tax credit program. Those seeking a tax credit were free to choose whether to direct their donations to the independent scholarship organization; the organization was

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then free to choose scholarship recipients; and, after that, parents were free to choose where to use those scholarships. But, the Montana Supreme Court held, this arrangement impermissibly allowed state funds to find their way to religious schools, in violation of a state constitutional provision. By way of remedy, the court ordered an end to the tax credit program, effectively killing Montana’s school choice experiment: Without tax credits, donations dry up, and so do the scholarships enabling school choice.

Today, the Court explains how the Montana Constitution, as interpreted by the State Supreme Court, violates the First Amendment by discriminating against parents and schools based on their religious status or identity. The Court explains, too, why the State Supreme Court’s decision to eliminate the tax credit program fails to mask the discrimination. But for the Montana Constitution’s impermissible discrimination, after all, the legislature’s tax credit and scholarship program would be still operating for the benefit of Ms. Espinoza and everyone else. I agree with all the Court says on these scores and join its opinion in full. I write separately only to address an additional point.

The Court characterizes the Montana Constitution as discriminating against parents and schools based on “religious status and not religious use.” *Ante*, at 477. No doubt, the Court proceeds as it does to underscore how the outcome of this case follows from *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449 (2017), where the Court struck down a similar public benefits restriction that, it held, discriminated on the basis of religious status. No doubt, too, discrimination on the basis of religious status raises grave constitutional questions for the reasons the Court describes. But I was not sure about characterizing the State’s discrimination in *Trinity Lutheran* as focused only on religious status, and I am even less sure about characterizing the State’s discrimination here that way. See *id.*, at 469 (GORSUCH, J., concurring in part).

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In the first place, discussion of religious activity, uses, and conduct—not just status—pervades this record. The Montana Constitution forbids the use of public funds “for any sectarian purpose,” including to “aid” sectarian schools. Art. X, § 6(1). Tracking this directive, the State Supreme Court reasoned that the legislature’s tax credit program could be used to “subsidiz[e] the sectarian school’s educational program” and thereby “strengthen . . . religious education.” 393 Mont. 446, 466, 467, 435 P. 3d 603, 613, 614 (2018). Meanwhile, Ms. Espinoza admits that she would like to use scholarship funds to enable her daughters to be taught in school the “same Christian values” they are taught at home. App. to Pet. for Cert. 152. Finally, in its briefing before this Court, Montana has represented that its Constitution focuses on preventing the use of tax credits to subsidize religious activity.

Not only is the record replete with discussion of activities, uses, and conduct, any jurisprudence grounded on a status-use distinction seems destined to yield more questions than answers. Does Montana seek to prevent religious parents and schools from participating in a public benefits program (status)? Or does the State aim to bar public benefits from being employed to support religious education (use)? Maybe it’s possible to describe what happened here as status-based discrimination. But it seems equally, and maybe more, natural to say that the State’s discrimination focused on what religious parents and schools *do*—teach religion. Nor are the line-drawing challenges here unique; they have arisen before and will again. See *Trinity Lutheran*, 582 U. S., at 469 (opinion of GORSUCH, J.).

Most importantly, though, it is not as if the First Amendment cares. The Constitution forbids laws that prohibit the free exercise of religion. That guarantee protects not just the right to *be* a religious person, holding beliefs inwardly and secretly; it also protects the right to *act* on those beliefs outwardly and publicly. At the time of the First Amendment’s adoption, the word “exercise” meant (much as it

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means today) some “[l]abour of the body,” a “[u]se,” as in the “actual application of any thing,” or a “[p]ractice,” as in some “outward performance.” 1 S. Johnson, *A Dictionary of the English Language* (4th ed. 1773); see also *ibid.* (5th ed. 1784). By speaking of a right to “free exercise,” rather than a right “of conscience,” an alternative the framers considered and rejected, our Constitution “extended the broader freedom of action to all believers.” McConnell, *The Origins and Historical Understanding of Free Exercise of Religion*, 103 Harv. L. Rev. 1409, 1490 (1989). So whether the Montana Constitution is better described as discriminating against religious status or use makes no difference: It is a violation of the right to free exercise either way, unless the State can show its law serves some compelling and narrowly tailored governmental interest, conditions absent here for reasons the Court thoroughly explains.

Our cases have long recognized the importance of protecting religious actions, not just religious status. In its very first decision applying the Free Exercise Clause to the States, the Court explained that the First Amendment protects the “freedom to act” as well as the “freedom to believe.” *Cantwell v. Connecticut*, 310 U. S. 296, 303 (1940). The Court then reversed a criminal conviction against Newton Cantwell and his sons, Jehovah’s Witnesses who were prosecuted not because of who they were but because of what they did—proselytize door to door without a license. See *id.*, at 300–301, 307, 311. In fact, this Court has already recognized that parents’ decisions about the education of their children—the very conduct at issue here—can constitute protected religious activity. In *Wisconsin v. Yoder*, 406 U. S. 205 (1972), the Court held that Amish parents could not be compelled to send their children to a public high school if doing so would conflict with the dictates of their faith. See *id.*, at 214–215, 220, 234–235.

Even cases that seemingly focus on religious status do so with equal respect for religious actions. In *McDaniel v.*

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Paty, 435 U. S. 618 (1978) (plurality opinion), for example, a State had barred the clergy from serving in the state legislature or at the state constitutional convention. See *id.*, at 620–622. Some have described the discrimination there as focused on religious “‘status.’” *Trinity Lutheran*, 582 U. S., at 459 (quoting *McDaniel*, 435 U. S., at 627) (emphasis deleted). But no one can question that conduct lurked just beneath the surface. After all, the State identified clergy based on their “conduct and activity,” and the plurality opinion concluded that the State’s prohibition was based on “status, acts, and conduct.” *Id.*, at 627; see also *id.*, at 630–633 (Brennan, J., concurring in judgment); *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520 (1993).

Consistently, too, we have recognized the First Amendment’s protection for religious conduct in public benefits cases. When the government chooses to offer scholarships, unemployment benefits, or other affirmative assistance to its citizens, those benefits necessarily affect the “baseline against which burdens on religion are measured.” *Locke v. Davey*, 540 U. S. 712, 726 (2004) (Scalia, J., dissenting) (citing *Everson v. Board of Ed. of Ewing*, 330 U. S. 1, 16 (1947)). So, as we have long explained, the government “penalize[s] religious activity” whenever it denies to religious persons an “equal share of the rights, benefits, and privileges enjoyed by other citizens.” *Lyng v. Northwest Indian Cemetery Protective Assn.*, 485 U. S. 439, 449 (1988). What benefits the government decides to give, whether meager or munificent, it must give without discrimination against religious conduct.

Our cases illustrate the point. In *Sherbert v. Verner*, 374 U. S. 398 (1963), for example, a State denied unemployment benefits to Adell Sherbert not because she was a Seventh-day Adventist but because she had put her faith into practice by refusing to labor on the day she believed God had set aside for rest. See *id.*, at 399–401. Recognizing her right to exercise her religion freely, the Court held that Ms. Sher-

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bert was entitled to benefits. See *id.*, at 410. Similarly, in *Thomas v. Review Bd. of Ind. Employment Security Div.*, 450 U. S. 707 (1981), the Court held that Eddie Thomas had the right to resign from his job and still collect an unemployment check after he decided he could not assemble military tank turrets consistent with the teachings of his faith. See *id.*, at 709–712, 720. In terms that speak equally to our case, the Court explained that the government tests the Free Exercise Clause whenever it “conditions receipt of an important benefit upon conduct proscribed by a religious faith, or . . . denies such a benefit because of conduct mandated by religious belief, thereby putting substantial pressure on an adherent to modify his behavior and to violate his beliefs.” *Id.*, at 717–718.

The First Amendment protects religious uses and actions for good reason. What point is it to tell a person that he is free to *be* Muslim but he may be subject to discrimination for *doing* what his religion commands, attending Friday prayers, living his daily life in harmony with the teaching of his faith, and educating his children in its ways? What does it mean to tell an Orthodox Jew that she may have her religion but may be targeted for observing her religious calendar? Often, governments lack effective ways to control what lies in a person’s heart or mind. But they can bring to bear enormous power over what people say and do. The right to *be* religious without the right to *do* religious things would hardly amount to a right at all.

If the government could intrude so much in matters of faith, too, winners and losers would soon emerge. Those apathetic about religion or passive in its practice would suffer little in a world where only inward belief or status is protected. But what about those with a deep faith that requires them to do things passing legislative majorities might find unseemly or uncouth—like knocking on doors to spread their beliefs, refusing to build tank turrets during wartime, or teaching their children at home? “[T]hose who take their

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religion seriously, who think that their religion should affect the whole of their lives,” and those whose religious beliefs and practices are least popular, would face the greatest disabilities. *Mitchell v. Helms*, 530 U. S. 793, 827–828 (2000) (plurality opinion). A right meant to protect minorities instead could become a cudgel to ensure conformity.

It doesn’t take a long or searching look through history or around the world to see how this can go. In the century before our Nation’s founding, Oliver Cromwell promised to Catholics in Ireland: “‘As to freedom of conscience, I meddle with no man’s conscience; but if you mean by that, liberty to celebrate the Mass, I would have you understand that in no place where the power of the Parliament of England prevails shall that be permitted.’” *McDaniel*, 435 U. S., at 631, n. 2 (opinion of Brennan, J.) (quoting S. Hook, *Paradoxes of Freedom* 23 (1962)); see also 1 T. Carlyle, *Oliver Cromwell’s Letters and Speeches* 395 (1845) (recording Cromwell’s October 19, 1649, letter to the Governor of Ross). Even today, in fiefdoms small and large, people of faith are made to choose between receiving the protection of the State and living lives true to their religious convictions.

Of course, in public benefits cases like the one before us the stakes are not so dramatic. Individuals are forced only to choose between forgoing state aid or pursuing some aspect of their faith. The government does not put a gun to the head, only a thumb on the scale. But, as so many of our cases explain, the Free Exercise Clause doesn’t easily tolerate either; any discrimination against religious exercise must meet the demands of strict scrutiny. In this way, the Clause seeks to ensure that religion remains “a matter of voluntary choice by individuals and their associations, [where] each sect . . . ‘flourish[es] according to the zeal of its adherents and the appeal of its dogma,’” influenced by neither where the government points its gun nor where it places its thumb. *McDaniel*, 435 U. S., at 640 (opinion of Brennan J.) (quoting *Zorach v. Clauson*, 343 U. S. 306, 313 (1952)).

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Montana’s Supreme Court disregarded these foundational principles. Effectively, the court told the state legislature and parents of Montana like Ms. Espinoza: You can have school choice, but if anyone dares to choose to send a child to an accredited religious school, the program will be shuttered. That condition on a public benefit discriminates against the free exercise of religion. Calling it discrimination on the basis of religious status or religious activity makes no difference: It is unconstitutional all the same.

JUSTICE GINSBURG, with whom JUSTICE KAGAN joins, dissenting.

The Montana Legislature enacted a scholarship program to fund tuition for students attending private secondary schools. See Mont. Code Ann. § 15–30–3111 (2019). In the decision below, the Montana Supreme Court struck down that program in its entirety. The program, the state court ruled, conflicted with the State Constitution’s no-aid provision, which forbids government appropriations to religious schools. Mont. Const., Art. X, § 6(1). Parents who sought to use the program’s scholarships to fund their children’s religious education challenged the state court’s ruling. They argue in this Court that the Montana court’s application of the no-aid provision violated the Free Exercise Clause of the Federal Constitution. Importantly, the parents, petitioners here, disclaim any challenge to the no-aid provision on its face. They instead argue—and this Court’s majority accepts—that the provision is unconstitutional as applied because the First Amendment prohibits discrimination in tuition-benefit programs based on a school’s religious status. Because the state court’s decision does not so discriminate, I would reject petitioners’ free exercise claim.

The First Amendment prohibits the government from “mak[ing a] law . . . prohibiting the free exercise” of religion. U. S. Const., Amdt. 1. This Court’s decisions have recognized that a burden on religious exercise may occur both

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when a State proscribes religiously motivated activity and when a law pressures an adherent to abandon her religious faith or practice. *Sherbert v. Verner*, 374 U.S. 398, 406 (1963); *Hobbie v. Unemployment Appeals Comm’n of Fla.*, 480 U.S. 136, 140–141 (1987). The Free Exercise Clause thus protects against “indirect coercion or penalties on the free exercise of religion.” *Lyng v. Northwest Indian Cemetery Protective Assn.*, 485 U.S. 439, 450 (1988). Invoking that principle in *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U.S. 449 (2017), the Court observed that disqualifying an entity from a public benefit “solely because of [the entity’s] religious character” can impose “a penalty on the free exercise of religion.” *Id.*, at 462. The Court then concluded that a Missouri law making churches ineligible for a government playground-refurbishing grant impermissibly burdened the church’s religious exercise by “put[ting it] to the choice between being a church and receiving a government benefit.” *Id.*, at 465.

Petitioners argue that the Montana Supreme Court’s decision fails when measured against *Trinity Lutheran*. I do not see how. Past decisions in this area have entailed *differential treatment* occasioning a burden on a plaintiff’s religious exercise. *Lyng*, 485 U.S., at 450–451; *Trinity Lutheran*, 582 U.S., at 463. This case is missing that essential component. Recall that the Montana court remedied the state constitutional violation by striking the scholarship program in its entirety. Under that decree, secular and sectarian schools alike are ineligible for benefits, so the decision cannot be said to entail differential treatment based on petitioners’ religion. Put somewhat differently, petitioners argue that the Free Exercise Clause requires a State to treat institutions and people neutrally when doling out a benefit—and neutrally is how Montana treats them in the wake of the state court’s decision.

Accordingly, the Montana Supreme Court’s decision does not place a burden on petitioners’ religious exercise. Peti-

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tioners may still send their children to a religious school. And the Montana Supreme Court's decision does not pressure them to do otherwise. Unlike the law in *Trinity Lutheran*, the decision below puts petitioners to no "choice": Neither giving up their faith, nor declining to send their children to sectarian schools, would affect their entitlement to scholarship funding. 582 U. S., at 462. There simply are no scholarship funds to be had.

True, petitioners expected to be eligible for scholarships under the legislature's program, and to use those scholarships at a religious school. And true, the Montana court's decision disappointed those expectations along with those of parents who send their children to secular private schools. But, as JUSTICE SOTOMAYOR observes, see *post*, at 540 (dissenting opinion), this Court has consistently refused to treat neutral government action as unconstitutional solely because it fails to benefit religious exercise. See *Sherbert*, 374 U. S., at 412 (Douglas, J., concurring) ("[T]he Free Exercise Clause is written in terms of what the government cannot do to the individual, not in terms of what the individual can exact from the government.").

These considerations should be fatal to petitioners' free exercise claim, yet the Court does not confront them. Instead, the Court decides a question that, in my view, this case does not present: "[W]hether excluding religious schools and affected families from [the scholarship] program was consistent with the Federal Constitution." *Ante*, at 474 (majority opinion). The Court goes on to hold that the Montana Supreme Court's application of the no-aid provision violates the Free Exercise Clause because it "'condition[s] the availability of benefits upon a recipient's willingness to surrender [its] religiously impelled status.'" *Ante*, at 478 (quoting *Trinity Lutheran*, 582 U. S., at 461–462; some alterations omitted). As I see it, the decision below—which maintained neutrality between sectarian and nonsectarian private schools—did no such thing.

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Finding the “beginning” of the Montana Supreme Court’s decision erroneous, this Court regards the state court’s ultimate judgment as irrelevant. *Ante*, at 487–489. In the Court’s recounting, the Montana court first held that religious schools must be excluded from the scholarship program—necessarily determining that the Free Exercise Clause permitted that result—and only subsequently struck the entire program as a way of carrying out its holding. See *ante*, at 487–488 (“When the [Montana Supreme] Court was called upon to apply a state law no-aid provision to exclude religious schools from the program, it was obligated by the Federal Constitution to reject the invitation.”). But the initial step described by this Court is imaginary. The Montana court determined that the scholarship program violated the no-aid provision because it resulted in aid to religious schools. Declining to rewrite the statute to exclude those schools, the state court struck the program in full. 393 Mont. 446, 463–468, 435 P. 3d 603, 612–614 (2018). In doing so, the court never made religious schools ineligible for an otherwise available benefit, and it never decided that the Free Exercise Clause would allow that outcome.¹

Thus, contrary to this Court’s assertion, see *ante*, at 488, the no-aid provision did not require the Montana Supreme Court to “exclude” religious schools from the scholarship program. The provision mandated only that the state treasury not be used to fund religious schooling. As this case demonstrates, that mandate does not necessarily require differential treatment. The no-aid provision can be imple-

¹ In its opinion, Montana’s highest court stated without explanation that this case is not one in which application of the no-aid provision violates the Free Exercise Clause. 393 Mont., at 468, 435 P. 3d, at 614. When the court made that statement, it had already invalidated the entire scholarship program. *Ibid.* Accordingly, the court’s statement cannot be understood to have approved of excluding religious schools from an otherwise available scholarship. Instead, the statement is most fairly read to convey that the Free Exercise Clause allows a State to decline to fund any private schools, an outcome that avoids state aid to religious schools.

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mented in two ways. A State may distinguish within a benefit program between secular and sectarian schools, or it may decline to fund all private schools. The Court agrees that the First Amendment permits the latter course. See *ante*, at 487. Because that is the path the Montana Supreme Court took in this case, there was no reason for this Court to address the alternative.

By urging that it is impossible to apply the no-aid provision in harmony with the Free Exercise Clause, the Court seems to treat the no-aid provision itself as unconstitutional. See *ante*, at 487–488. Petitioners, however, disavowed a facial First Amendment challenge, and the state courts were never asked to address the constitutionality of the no-aid provision divorced from its application to a specific government benefit. See, *e. g.*, Reply Brief 8, 20, 21–22. This Court therefore had no call to reach that issue. See *Adams v. Robertson*, 520 U. S. 83, 90 (1997) (*per curiam*) (“[I]t would be unseemly in our dual system of government’ to disturb the finality of state judgments on a federal ground that the state court did not have occasion to consider.” (quoting *Webb v. Webb*, 451 U. S. 493, 500 (1981))). The only question properly raised is whether application of the no-aid provision to bar all state-sponsored private-school funding violates the Free Exercise Clause. For the reasons stated, *supra*, at 516–517, it does not.

Nearing the end of its opinion, the Court writes: “A State need not subsidize private education. But once a State decides to do so, it cannot disqualify some private schools solely because they are religious.” *Ante*, at 487. Because Montana’s Supreme Court did not make such a decision—its judgment put all private-school parents in the same boat—this Court had no occasion to address the matter.² On that sole

²The Montana Supreme Court’s decision leaves parents where they would be had the State never enacted a scholarship program. In that event, no one would argue that Montana was obliged to provide such a program solely for parents who send their children to religious

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ground, and reaching no other issue, I dissent from the Court's judgment.

JUSTICE BREYER, with whom JUSTICE KAGAN joins as to Part I, dissenting.

The First Amendment's Free Exercise Clause guarantees the right to practice one's religion. At the same time, its Establishment Clause forbids government support for religion. Taken together, the Religion Clauses have helped our Nation avoid religiously based discord while securing liberty for those of all faiths.

This Court has long recognized that an overly rigid application of the Clauses could bring their mandates into conflict and defeat their basic purpose. See, e.g., *Walz v. Tax Comm'n of City of New York*, 397 U. S. 664, 668–669 (1970). And this potential conflict is nowhere more apparent than in cases involving state aid that serves religious purposes or institutions. In such cases, the Court has said, there must be constitutional room, or “play in the joints,” between “what the Establishment Clause permits and the Free Exercise Clause compels.” *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449, 458 (2017) (quoting *Locke v. Davey*, 540 U. S. 712, 718 (2004)). Whether a particular state program falls within that space depends upon the nature of the aid at issue, considered in light of the Clauses' objectives.

The majority barely acknowledges the play-in-the-joints doctrine here. It holds that the Free Exercise Clause forbids a State to draw any distinction between secular and religious uses of government aid to private schools that is not required by the Establishment Clause. The majority's approach and its conclusion in this case, I fear, risk the kind of entanglement and conflict that the Religion Clauses are intended to prevent. I consequently dissent.

schools. But cf. *ante*, at 508 (ALITO, J., concurring) (inapt reference to Anatole France's remark).

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I

In 2015, Montana’s Legislature enacted a statute giving a \$150 tax credit to any person who contributes at least that amount to an organization that provides scholarships for students who attend nonpublic schools. See Mont. Code Ann. §15–30–3111 (2019). The overwhelming majority of these schools are religious. (In 2018, 94% of the scholarships awarded helped to pay religious-school tuition. 393 Mont. 446, 466, 478–479, and n. 6, 435 P. 3d 603, 613, 621, and n. 6; App to Pet. for Cert. 123, 125.) The Montana Supreme Court held that this program violated a state constitutional provision that forbids the legislature to make “any direct or indirect appropriation or payment” for “any sectarian purpose or to aid any church, school, academy . . . controlled in whole or in part by any church, sect, or denomination.” Mont. Const., Art. X, §6.

Petitioners are the parents of students who attend one of Montana’s Christian private schools. They believe that the tenets of their faith require them to send their children to a religious school. And they claim that, by preventing them from using state-supported scholarships at those schools, the Montana Supreme Court’s interpretation of Montana’s Constitution violates their First Amendment right to free exercise. I shall assume, for purposes of this opinion, that petitioners’ free exercise claim survived the Montana Supreme Court’s wholesale invalidation of the tax credit program. Cf. *ante*, at 516 (GINSBURG, J., dissenting); *post*, at 539–540 (SOTOMAYOR, J., dissenting).

A

We all recognize that the First Amendment prohibits discrimination against religion. At the same time, our history and federal constitutional precedent reflect a deep concern that state funding for religious teaching, by stirring fears of preference or in other ways, might fuel religious discord and division and thereby threaten religious freedom itself. See,